

HOUSE No. 5482

Text of a further amendment, offered by Mr. Walsh of Peabody, to the Senate amendment of the House Bill authorizing municipalities to opt-in to a temporary pilot to extend the hours of liquor licenses and to allow for public consumption in designated districts in summer 2026 (House, No. 5478, amended). June 8, 2026.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause (inserted by amendment by the Senate) and inserting in place thereof the following:—

1 SECTION 1. For purposes of this act, “licensed establishment” shall mean an
2 establishment holding a license for the sale of alcoholic beverages, whether all alcoholic or
3 wines and malt only, to be drunk on the premises pursuant to chapter 138 of the General Laws.

4 SECTION 2. Notwithstanding any general or special law to the contrary, and subject to
5 sections 4 and 5, a local licensing authority in a city or town may, on a temporary basis, allow a
6 licensed establishment to sell alcoholic beverages for off-premises consumption in districts
7 designated pursuant to section 4. Only licensed establishments located within a district
8 designated pursuant to said section 4 may sell alcoholic beverages to be consumed off premises
9 within the district.

10 SECTION 3. Notwithstanding any general or special law to the contrary, and subject to
11 section 5, a licensed establishment may, subject to approval of the local licensing authority, sell
12 alcoholic beverages on-premises for 1 additional hour beyond the time set forth in the

establishment's license, but not to exceed 3:00 a.m. until July 31, 2026, subject to any applicable local rules or regulations and any conditions placed upon its license.

SECTION 4. Notwithstanding any general or special law to the contrary, and subject to section 5, a local licensing authority may designate 1 or more districts in the city or town in which alcoholic beverages are permitted to be consumed off premises, in public spaces, subject to such restrictions as the city or town may deem appropriate and only through July 31, 2026. Alcohol consumed within a district designated pursuant to this section, shall be limited to alcoholic beverages sold by participating licensed establishments located within such designated district.

SECTION 5. Nothing in this act shall be construed to permit a licensed establishment to sell any type or category of alcohol beyond the type or category of alcohol that the licensed establishment is permitted to sell under the license issued to it by the local licensing authority pursuant to chapter 138 of the General Laws.

SECTION 6. The executive office of economic development, in consultation with the alcoholic beverages control commission, the executive office of public safety and security and the department of revenue, shall report on the implementation and outcomes of the pilot program established by this act. The report shall include, but not be limited to: (i) the number and location of districts designated by municipalities; (ii) the number of communities authorizing establishments to sell alcoholic beverages for off premises consumption in approved districts; (iii) the number of communities authorizing establishments for extended hours of on premises sales; and (iv) any evidence of increased public safety incidents as a result of extended hours of on premise sales. The report shall evaluate any notable changes or observations relative to the

35 pilot and economic development, public safety, and revenue and sales during the pilot, and may
36 make any recommendations to improve outcomes. The executive office of economic
37 development shall file a report not later than December 31, 2026 containing its findings and
38 recommendations with the clerks of the senate and house of representatives.

39 SECTION 7. Sections 1 to 5, inclusive, shall expire on July 31, 2026.